

25STCV14869 25STCV14869

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-09-23

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Case Number: 25STCV14869 Hearing Date: September 23, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

309

TENTATIVE RULING

MARIA ESTER GUERRERO

vs.

HARRY H. WONG

Case

No.: 25STCV14869

Hearing Date: September 23, 2026

Plaintiff's

motion to compel further response from Defendant to her Special Interrogatories (Set One) is GRANTED. Supplemental responses are due within 15 days of entry of order. Defendant is sanctioned, jointly and severally with counsel, \$1,050, due within 15 days of entry of order.

On 5/21/2025,

Plaintiffs Maria Ester Guerrero, Kevin de Jesus Guerrero, Jose Pedro Silvas

Flores, Ericka Beatriz Guerrero, Yessica Escobar, and Asher Escobar Guerrero (collectively, Plaintiffs) filed suit against Harry H. Wong (Defendant). On 10/14/2025, Plaintiffs filed a first amended complaint (FAC) alleging: (1) statutory breach of warranty of habitability; (2) breach of implied warranty of habitability; (3) retaliation; (4) negligence; (5) nuisance; (6) intentional infliction of emotional distress; (7) breach of contract; (8) breach of covenant of quiet enjoyment; (9) breach of covenant of good faith and fair dealing; (10) violation of Business and Professions Code section 17200; and (11) violation of LAMC section 45.33.

On 5/15/2026, Plaintiff Maria Ester Guerrero (Plaintiff) moved to compel further response from Defendant to her Special Interrogatories (Set One).

Discussion

Plaintiff

argues that Defendant should be compelled to provide further responses because his responses are evasive, incomplete, and consist of improper boilerplate objections.

In

opposition, Defendant argues that his responses are sufficient and that Plaintiff's motion is untimely. However, Defendant's responses are facially deficient. For example, in response to an interrogatory regarding inspection, Defendant responded "N/A" but this response is apparently inconsistent with Defendant's admissions regarding involvement by the Los Angeles County Department of Public Health.

Based on the

foregoing, Plaintiff's motion to compel further response from Defendant to her Special Interrogatories (Set One) is granted. Supplemental responses are due within 15 days of entry of order. Defendant is sanctioned, jointly and severally with counsel, \$1,050 (\$350/hr x 3 hrs), due within 15 days of entry of order.

It is so ordered.

Dated: September
, 2026

Hon. Jon R.

Takasugi

Judge of the

Superior Court

Parties who intend to submit on this tentative must

send an email to the court at smcdept17@lacourt.org

by 4 p.m. the day prior as directed by the instructions provided on the court

website at www.lacourt.org. If a party submits

on the tentative, the party's email must include the case number and must

identify the party submitting on the tentative.

If all parties to a motion submit, the court will adopt this

tentative as the final order. If the department

does not receive an email indicating the parties are submitting on the

tentative and there are no appearances at the hearing, the motion may be placed

off calendar. For more information, please contact the court clerk at (213)

633-0517.